

FEDERAL MARITIME COMMISSION
Office of Administrative Law Judges

VISUAL COMFORT & Co., *Complainant*

v.

COSCO SHIPPING LINES Co., LTD, *Respondent*.

DOCKET NO. 24-01

Served: December 19, 2024

ORDER OF: Richard AMBROW, *Administrative Law Judge*.

ORDER REQUIRING A JOINT STATUS REPORT

This matter was reassigned to the Undersigned on December 9, 2024.

The parties are **ORDERED** to file a joint status report no later than **December 30, 2024**. The parties are instructed to provide an update regarding what remains to be decided from Complainant's Second Motion to Compel ("2d MTC").

In its 2d MTC, Complainant requests, among other things, an order compelling Respondent to search and produce all relevant documents identified by Respondent's 30(b)(6) witness. (2d MTC, at 2). Specifically, Complainant asserts that Respondent failed to search the emails of any document custodian. (*Id.*, at 4-5). In addition, the 30(b)(6) witness testified that complaints about detention and per diem should be sent to a particular email address, which Respondent did not search. (*Id.*, at 5). Thus, Complainant asked during the 30(b)(6) deposition, as well as in a subsequent document request, for a search of, among other things, particular email addresses and of particular custodians.

In Respondent's Response to Complainant's Second Motion to Compel Discovery and Motion to Extend Page Limits ("Response"), Respondent asserts that it agreed to conduct most of the searches Complainant asked for. Additionally, Respondent represents that it was "[then-] presently conducting those searches." (Response, at 4).

In Complainant's Opening Brief in Support of its Claims against COSCO Shipping Lines Co., LTD ("Opening Brief"), Complainant asserts that it received no documents from Respondent in response to the searches Respondent represented it conducted. (Opening Brief, at 10-12).

Accordingly, no later than **December 30, 2024**, the parties are **ORDERED** to provide the status of any searches and subsequent production, and indicate what issues remain to be decided from the 2d MTC.

Richard C.

Ambrow Jr -S

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Richard C. Ambrow Jr -
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Richard Ambrow
Administrative Law Judge